

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

R.F.A. No.10975 of 2025

The Province of Punjab through **Versus** Sabir Ali and 8 others
Secretary, Sports & Youth Affairs
Department Lahore and 2 others.

Sr. No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
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24.2.2025 Rana Shamshad Khan, Addl. Advocate General with
Farman Ullah Baig Law Officer, for respondent No.1.

C.M. No.1 of 2025 & Main Case

Through instant application filed under Section 5 of the Limitation Act, 1908 read with Section 151 the Code of Civil Procedure, 1908, the applicants/ appellants seeks condonation of delay in filing of the main appeal preferred under section 54 of the Land Acquisition Act, 1894, against the consolidated judgment dated 09.01.2024 passed by learned Senior Civil Judge (Civil Division), Kasur, whereby the references filed by the respondents were partially accepted in the terms as under:-

“In view of my above issue-wise findings the reference is hereby partially accepted and Award No.1 of 2014 dated 01.01.2014 is hereby modified partially and it is held that the petitioners are entitled to receive enhanced compensation @ Rs.10,000,000/- (One Crore Rupees) Per acre. The petitioners are also entitled for compulsory acquisition charges @ 15 percent and compound interest @ 08 percent per annum from the date of possession till payment as per law.

2. Succinctly, the facts of the case are that the Sports & Youth Affairs Department acquired an area of land measuring 140-Kanals and 10-Marlas situated in the

Revenue Estate of Mustafabad Bairoon, Tehsil & District Kasur. Notification under Section 4 of the Land Acquisition Act, 1894, (**'the Act'**) was published in the Punjab Government Gazette on 25.09.2012 whereas a combined Notification under Section 17(4) read with section 6 of the Act was published in the said Gazette, for determination of compensation for the acquired land. After issuance of above notifications, the award was announced by Assistant Commissioner/Land Acquisition Collector, Kasur on 01.01.2014. Feeling aggrieved, respondents filed two separate references for enhancement of compensation. The appellants contested the references by filing written statement as well as written reply while raising certain legal as well as factual objections. Out of divergent pleadings of the parties the following issues were framed:-

1. *Whether the petitioner's references are liable to be decreed as prayed for?OPA.*
2. *Whether the compensation of Award by LAC is inadequate and improper against the market value of the suit land and same is liable to be enhanced as prayed for along with compound interest?OPA.*
3. *Whether the references are barred by time?OPR*
4. *Whether the references are not maintainable in its present form, hence, same are liable to be dismissed u/o VII Rule 11 CPC?OPR.*
5. *Relief.*

Both the parties were directed to produce their respective evidence. After recording evidence and hearing both the parties, the references were partially accepted in the terms mentioned above vide consolidated judgment dated 09.01.2024 which has been impugned through the instant

appeal alongwith the application for condonation of delay on the following main ground:-

“2. That the references and consolidated judgment and decree dated 09.01.2024 were not in the notice of the Department as it firstly came into the knowledge of the Secretary Sports & Youth Affairs Department on 13.01.2025 through letter No.DSO-KS-25/1208 dated 10.01.2025 issued by District Sports Officer, Kasur and after knowledge the present appeal is being filed, which is within time.”

3. We have heard the arguments of learned counsel for the appellants and considered the record of the trial court attached with the appeal so there is no need to summon the record of the trial court. Guidance in this regard is sought from the esteemed case laws reported as ‘Sohail Hameed Butt Vs. Mst. Nudrat Nafees’ (2008 SCMR 635) and ‘Ashiq Ali and others Vs. Mst. Zamir Fatima and others’ (PLD 2004 Supreme Court 10).

4. Under section 3 of the Limitation Act, 1908, it is the inherent duty of the court to dilate into the question of limitation. It has been noted by us that references were filed by the respondents in 2014 and after adopting due process, the same were decided by the trial court vide consolidated judgment dated 09.1.2024 which has been assailed under Section 54 of the Land Acquisition Act, which is reproduced as under:-

“Subject to the provisions of the Code of Civil Procedure, 1908 , applicable to appeals from original decrees, and notwithstanding anything to the contrary in any enactment for the time being in force, an appeal shall only lie in any proceedings under this Act to the High Court from the award, or from any part of the award, of the Court and from any decree of the High Court passed on such appeal as aforesaid an

appeal shall lie to 4 [the Supreme Court] subject to the provisions contained in section 110 of the Code of Civil Procedure, 1908 , and in Order XLV thereof.”

The stance taken by the appellants is that references and consolidated judgment were not in the knowledge of the Secretary Sports and Youth Affairs Department and it came into his knowledge on 13.1.2025 through letter dated 10.1.2025 issued by the District Sports Officer, Kasur and thereafter the instant appeal has been filed.

5. All the appellants including District Sports Officer/appellant No.2 were respondents in reference before learned trial court and were duly represented. The consolidated judgment was passed by the trial court on 09.1.2024 whereas instant appeal along with the application for condonation of delay has been filed by the appellants on 21.2.2025. The appellants applied for attested copies of the documents on 27.1.2025 and were delivered on the same day and by excluding a day for obtaining certified copies of the documents, instant appeal has been filed with the delay of 318 days. The communication and correspondence inter se the departments cannot be considered a valid and reasonable ground for condonation of delay. While dealing the limitation for filing of the appeal under Section 54 of the Act, 1894, the August Supreme Court of Pakistan in the case of Cholistan

Co-operative Wool Development Marketing Union
Ltd, Bahawalpur Vs. Bashir Ahmad and another (1983

SCMR 1105) held as under:-

“We do not think that the provisions of the Limitation Act, which are relatable to the Civil Procedure Code stand excluded by this non obstante clause. It is only those provisions in the Civil Procedure Code or any other enactment which are inconsistent with any provisions of the Land Acquisition Act that will stand displaced on account of the above nonobstante clause, but the remaining provisions will continue to apply. For instance, notwithstanding any provision in any other enactment, in view of the express stipulation in section 54 of the Land Acquisition Act an appeal from an award of a reference Court shall lie to the High Court irrespective of the value of the appeal but other provisions dealing with the period in which such appeals shall be filed, etc. there being no provision in the Land acquisition Act in this respect to the contrary will continue to apply. As no provision was brought to our notice which excludes the application of the Limitation Act to such appeals we are inclined to agree with the High Court that the provisions of Article 156 of the Limitation Act would apply to appeals filed under section 54 of the Land Acquisition Act.”

The law of limitation is designed to ensure diligence in pursuing legal remedies. The appellants have to explain the delay of each and every day with justified and cogent reasons. In the absence of any reasonable cause, the delay for such a long period cannot be condoned. The record attached reveals that the counsel for the appellants was appearing during the proceedings before the trial court and participated in each and every step. The ground for no knowledge is against the admitted fact and record of the trial court therefore has no substance. Even otherwise, limitation is not a mere technicality rather it creates a vested right

for the opposite party and delay results in the extinction of a legal remedy unless valid reasons are taken. Reliance is placed on the case of Asad Ali and 9 others Vs. The Bank of Punjab and others (PLD 2020 Supreme Court 736) wherein it has been held as under:-

10. In addition, a perusal of the applications for condonation of delay filed by Appellants before the High Court which were essentially placed before the Tribunal after transfer of cases did not disclose any sufficient cause for condonation of delay, let alone explaining every day of delay which is a necessary requirement to seek condonation of delay. It is settled law that limitation is not a mere technicality (or a hyper technicality as it had been termed by the Tribunal) Once limitation expires, a right accrues in favour of the other side by operation of law which cannot be lightly be taken away.

and that of Br. Jehanzaib Rahim Vs. Dr. Shaukat Pervez, Dr. Hamida Rahim and others (PLD 2007 SC 560) and Ajab Khan and others Vs. Government of NWFP and others (2007 SCMR 860).

6. We have observed that learned counsel for the appellants cross-examined the respondents and was present during the proceedings. The stance taken by the appellants is not justified and there is no sufficient reason to condone the limitation.

August Supreme Court of Pakistan in case of Government of Pakistan through Ministry of Works and another Vs. Messrs Malbrow Builders, Contractor, Sialkot (2006 SCMR 1248) observed as under:-

“It was held that question of limitation being not merely a technicality cannot be taken lightly and the rights accrued to the other party due to limitation cannot be snatched away without sufficient cause and lawful justification which are lacking in this case. We are conscious of the fact that sufficient cause is not capable of connotation with exactitude and would differ from case to case but laxity, carelessness and cursory approach of the functionaries of the Government do not constitute sufficient cause and hence the question of any indulgence does not arise.

Emphasis supplied

The application for condonation of delay filed by the appellants is of general nature. Perspective of delay of each day was not satisfactorily explained. The August Supreme Court of Pakistan laid down in case of Province of Punjab through Secretary Education Vs. Kishwar Qudus Paul (2004 SCMR 571) as under:-

“This Court has time and again held that delay taking place in the Government offices in the process of filing petitions could not be said to be sufficient cause for condoning the delay. In the instant case there is delay of fourteen days in filing the petition for leave to appeal and each day's delay has not been satisfactorily accounted for. It was bounden duty of the petitioner to have pursued the matter for the purpose of filing the petition as soon as the judgment was passed on 09.08.2002. The petitioner cannot be allowed to place blame upon his subordinate officers who though were also equally responsible to expedite the process of filing the petition within time. It must be noted that delay in filing petition has created vested right in favour of respondent which cannot be lightly ignored unless strong case is made out showing sufficient cause accounting each day's delay. But in the instant case no sufficient cause has been shown for condonation or delay of fourteen days therefore, this petition is dismissed as time barred.

Emphasis supplied

7. Learned counsel for the appellants has referred the case law reported as WAPDA Vs. Muhammad Khalid (1991 SCMR 1765), Hussain Spinning Unit

No.2 Vs. Authority Under The Payment Of Wages and another (2008 PLC 280), Teekam Das M. Haseeja, Executive Engineer, WAPDA VS. Chairman, WAPDA and another (2002 SCMR 142), Managing Director, Sui Southern Gas Company Ltd., Karachi Vs. Ghulam Abbas and others (PLD 2003 Supreme Court 724).

We have seen the above referred case laws. These do not apply to this case and have different facts and proposition therefore do not rescue the appellants for condonation of delay.

8. The appellants being government departments cannot be treated differently from the ordinary litigants. The government departments are not entitled to any leniency while deciding the question of limitation. Their cases must be assessed on the same standards applicable to public litigants and application for condonation of delay requires same scrutiny. Even otherwise, law favours the vigilant not the indolent. Reliance in this regard is placed on the case law reported as 'Town Administration and another Vs. Mohammad Khalid and others (2024 SCMR 1852)' wherein it has been held as under:-

“13. So far as the effect of time barred appeals before the learned Punjab Appellate Tribunal is concerned, the answer is built-in and ingrained in the judgment again authored by one of us in the case of Regional Police Officer, Dera Ghazi Khan Region v. Riaz Hussain Bukhari (2024 SCMR 1021), in which it was held that while considering the grounds for condonation of delay, whether rational or irrational, no extraordinary clemency or compassion and/or

preferential treatment may be accorded to the Government department, autonomous bodies or private sector/organizations, rather their case should be dealt with uniformly and in the same manner as cases of ordinary litigants and citizens. No doubt the law favours adjudication on merits, but simultaneously one should not close their eyes or oversee another aspect of great consequence, namely that the law helps the vigilant and not the indolent. The judgment also quotes a Latin maxim "Leges vigilantibus non dormientibus subserviunt" or "Vigilantibus Non Dormientibus Jura Subveniunt" which articulates that the law aids and assists those who are vigilant but not those who are sleeping or slumbering. Delay in invoking a lawful remedy by a person or entity who was sleeping over their rights may be denied. The doctrine of equality before law demands that all litigants, including the State, are accorded the same treatment and the law is administered in an even-handed manner. It was further held that the astuteness of the law of limitation does not confer a right but impinges incapacitation after the lapse of the period allowed for enforcing some existing legal rights and it foresees the culmination of claims which have decayed by efflux of time. Under Section 3 of the Limitation Act, 1908, it is the inherent duty of the Court to delve into the question of limitation, regardless of whether it is raised or not. Carelessness, intentional or obvious sluggishness, or dearth of bona fide is no reason for condonation of delay."

Further reliance in this regard is placed on the case titled as 'Government of Pakistan through Ministry of Works and another Vs. Messrs Malbrow Builders, Contractors, Sialkot' (2006 SCMR 1248) wherein it has been held as follows:-

"5.---No preferential treatment can be shown to the Government as held on various occasions by this Court. In this regard reference can be made to Chairman, District Evacuee Trust v. Abdul Khaliq through Legal Heirs and others PLD 2002 SC 436; Central Board of Revenue, Islamabad through Collector of Customs, Sialkot Dry Port, Sambrial, District Sialkot and others v. Messrs Raja Industries (Pvt.) Ltd. through General Manager and 3 others 1998 SCMR 307; Federation of Pakistan through Secretary Ministry of Foreign Affairs, Government of

Pakistan and 5 others v. Jamaluddin and others
1996 SCMR 727 and *Government of Punjab*
through Secretary (Services) S.A.&I Department,
Lahore and another v. Muhammad Saleem PLD
1995 SC 396.”

Therefore, relying on the internal correspondence amongst the appellants is not sufficient cause and plausible explanation for condonation of delay. The appeal was filed beyond the prescribed period of limitation and the appellants could not justify such a long delay thus, the appeal in hand is badly time barred.

9. For the foregoing reasons and upshot of the above discussion, the application for condonation of delay is hereby dismissed and as a consequence thereof, the appeal in hand also stands dismissed being barred by time.

(Masud Abid Naqvi) (Malik Muhammad Awais Khalid)
Judge Judge

Naeem*

Approved for reporting.

Judge

Judge